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25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 5

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
PRO PER

MOTION FOR ORDER RE: ADMISSIONS

(continued from 8/10/26)

TENTATIVE RULING:

For the reasons stated below, Plaintiff's "MOTION FOR ORDER ESTABLISHING ADMISSIONS BY DEFENDANTS' RX SOLAR INC. A CALIFORNIA CORPORATION, AND ALAN LIM AND FOR MONETARY SANCTIONS OF \$3,560," filed Jan. 15, 2026, is GRANTED-in-part and DENIED-in-part (as to the amount of sanction only).

In Sept. 2025, Plaintiff served Requests for Admission (Set One) ("RFAs") on both defendants, Alan Lim and Rx Solar, Inc. Defendants' responses to the RFAs were due in Oct. 2025. Defendants have never responded to the RFAs.

On Jan. 15, 2026, several months after the RFA responses were due, Plaintiff filed and served the present motion, entitled: "MOTION FOR ORDER ESTABLISHING ADMISSIONS BY DEFENDANTS' RX SOLAR INC. A CALIFORNIA CORPORATION, AND ALAN LIM AND FOR MONETARY SANCTIONS OF \$3,560." Due to the court's congested hearing calendar, the hearing for this motion was not scheduled to take place until Aug. 10, 2026.

On Aug. 3, 2026, Plaintiff's counsel Ira Leshin filed a supplemental declaration supporting this motion, attaching the subject RFAs, which had been inadvertently omitted from Mr. Leshin's prior, Jan. 15, 2026 declaration.

At the Aug. 10, 2026 hearing, the Court issued a Minute Order stating that the Court will consider Mr. Leshin's Aug. 3, 2026 supplemental declaration, but would continue the hearing to Sept. 14, 2026, to allow defendants additional time to consider the supplemental declaration.

Despite Plaintiff having served the subject RFAs in Sept. 2025 (a year ago), and despite Plaintiff having filed this motion to deem the RFAs admitted roughly nine months ago, and despite having many months to serve responses to the RFAs, even after Plaintiff filed this motion, to date, Defendants still have never responded to Plaintiff's RFAs (Set One).

In light of the foregoing, the motion to deem the RFAs admitted is granted. (Code Civ. Proc. § 2033.280(b), (c).)

Plaintiff's request for monetary sanctions is GRANTED-in-part, in the amount of \$1,060, jointly and severally, against defendants Alan Lim and Rx Solar, Inc. (Code Civ. Proc. § 2033.280(c).) To the extent the motion seeks sanctions against defendants' prior counsel, who has since withdrawn from the case,

that request is denied. The motion seeks a larger dollar amount of sanctions, which the Court finds to be unwarranted. This was a simple, unopposed motion. The Court credits Plaintiff's counsel for two hours of attorney time (at \$500/hr., see Jan. 15, 2026 Ira Leshin decl.), plus the \$60 filing fee, for a total sanctions award of \$1,060, which defendants shall pay to Plaintiff within 30 days of being served with notice of entry of this order.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CLJ-07314 KENOVER MARKETING CORP., VS. MEDITERRANEAN DEPOT LLC

LINE 6

KENOVER MARKETING CORP.,
MEDITERRANEAN DEPOT LLC

STEVEN A. BOOSKA

PLAINTIFF: KENOVER MARKETING CORP.'S MOTION TO VACATE DEFAULT JUDGMENT [CCP 473(a) & 187]

TENTATIVE RULING:

APPEAR and explain (1) whether Plaintiff is also seeking to vacate the default entered on March 4, 2026 (in addition to the March 23, 2026 judgment); and (2) whether Plaintiff is seeking leave to file an amended complaint or believes it can file the amendment as of right. If the former, it should lodge with the Court a copy of the proposed Amendment in advance of the hearing.
